

26STCV12479 26STCV12479

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-20

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Case Number: 26STCV12479 Hearing Date: July 20, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV12479

CLEMENT

AGBOTSE vs CHEMICO LLC, et al.

July

20, 2026

8:30

AM

JNATURE OF PROCEEDINGS:

VERIFIED APPLICATION OF BRETT BONFANTI FOR PRO HAC VICE ADMISSION TO APPEAR AS COUNSEL
FOR DEFENDANTS CHEMICO LLC, DANNY CLIFTON, KARL REED, AND SHALEONTYNE CONSTANTINE.

RULING:

The Application for
counsel to appear pro hac vice in this case is granted.

The Court sets a
non-appearance case review for July 23, 2027, at 8:30 a.m., in Department 311,
regarding payment of pro hac vice any renewal fees per Government Code section
70617, subdivision (e)(2).

Defendant to give
notice.

ANALYSIS:

By the Application filed June 25, 2026, an attorney
residing in Michigan, requests leave to appear pro hac vice for Defendants, on
grounds that it satisfies the requirements of California Rules of Court, rule
9.40.

There is no opposition, as is usual for these
applications.

A judge's determination of whether to grant an
application to appear pro hac vice is evaluated under the
abuse-of-discretion standard. (E.g., *United States Golf Ass'n v. Arroyo*
Software Corp. (1999) 69 Cal.App.4th 607, 624.) There
is no statement of the limit of court discretion in ruling on applications to
appear pro hac vice in civil cases. (*Sheller v. Superior Court* (2008)
158 Cal.App.4th 1697, 1713.)

The following elements apply:

The applicant
is not a member of the State Bar of California. (Cal. Rules of Court,
rule 9.40(a).)

The applicant
is in good standing of the bar of any United
States court or the highest court in any state,
territory or insular possession of the United States. (Id.)

The applicant
has been retained to appear in a particular cause pending in a court of
this state. (Id.)

An active
member of the State Bar of California is to be associated as attorney of
record. (Id.)

The applicant
is not a resident of the State of California. (Id.
at 9.40(a).)

The applicant
is not regularly employed in the State of California. (Id.)

The applicant
is not regularly engaged in substantial business, professional, or other
activities in the State of California. (Id.)

The applicant
has not made repeated appearances pursuant to rule 9.40. (Id. at 9.40(b).)

Any special
circumstances for repeated appearances pursuant to rule 9.40. (Id.)

The application
is verified. (Id. at
9.40(c)(1).)

The application
is accompanied by a proof of service by mail in accordance with section
1013a of the Code of Civil Procedure. (Id.)

The application
is accompanied by a proof of service of a copy of the application and of
the notice of hearing of the application upon all parties who have
appeared in the cause. (Code Civ. Proc., §1014; Cal. Rules of Court,
rule 9.40(c)(1).)

The application
is accompanied by a proof of service of a copy of the application and of
the notice of hearing of the application upon the State Bar of California
at San Francisco. (Id.)

Notice of
hearing has been given at the time prescribed in section 1005 of the Code
of Civil Procedure. (Id.)

The application
was served in a shorter period for notice the court prescribed. (Id.)

The application
states the applicant's residence and office address. (Id. at 9.40(d)(1).)

The application
states the courts to which the applicant has been admitted to practice and
the dates of admission. (Id.
at 9.40(d)(2).)

The application
states that the applicant is a member in good standing in the courts to
which the applicant has been admitted to practice. (Id. at 9.40(d)(3).)

The application
states that the applicant is not currently suspended or disbarred in any
court. (Id. at 9.40(d)(4).)

The application
states the title of court and cause in which the applicant has filed an
application to appear as counsel pro hac vice in this state in the
preceding two years, the date of each application, and whether it was
granted. (Id. at
9.40(d)(5).)

The application
states the name, address, and telephone number of the active member of the
State Bar of California who is attorney of record. (Id. at 9.40(d)(6).)

The application

shows a \$500.00 fee served upon the State Bar of California. (Id. at 9.40(e).)

The applicant
is qualified to appear pro hac vice. (Magee v. Superior Court
(1973) 8 Cal.3d 949, 953-954 [a criminal case arguably analogous to
civil].)

The applicant
is ready to appear pro hac vice. (Id.)

The applicant's
appearance would not cause a significant disruption of orderly
justice. (Id.)

The Court finds that
the Application sufficiently complies with California Rules of Court, rule
9.40, including the applicant's declaration addressing the rule elements.

Additionally, no
reason appears to deny the Application, including because of the absence of any
opposition.

Accordingly, the
Court grants the Application.